

SUMMARY OF INCIDENT

Investigator: Sgt Boeri		Team # 3	Supervisor: Captain Hulton
Date of Report 12/13/91		CCRB No.: 9103189	Classification: FAE
Date and Time of Incident: 11/6/91 0130		Date and Time Reported to C.C.R.B.: 11/14/91 0227	
Location of Incident: § 87(2)(b)			Precinct 67
O M P L A I N T	§ 87(2)(b)		
	STATE		
	ZIP CODE		
V I C T I M	s/a § 87(2)(b)		
A T T Y	none Representing _____		
W I T N E S S	none		

MEMBERS OF THE SERVICE

RANK	NAME	SUB- JECT	WIT- NESS	SHIELD NO.	CMD.	TAX REG. NO.	DUTY STATUS ON OFF	ASSIGNMENT	RACE
PO	Digiaco	☒	☐	1132	BSTF	886836	☐ ☒	A/C	W
PO	Bush	☒	☐	22601	BSTF	881660	☒ ☐	A/C	W
		☐	☐				☐ ☐		
		☐	☐				☐ ☐		
		☐	☐				☐ ☐		
		☐	☐				☐ ☐		
		☐	☐				☐ ☐		
		☐	☐				☐ ☐		
		☐	☐				☐ ☐		
		☐	☐				☐ ☐		

ALLEGATIONS

	SOURCE	APPENDIX ENCLOSURE NO.
A) Compl. alleges that the police searched him	UF245	2
B) Compl. alleges that the police assaulted him.	DO	DO
C) Compl. alleges that the police cursed him racially.	DO	DO

COMMUNICATIONS TO BE ANSWERED:

☐ P.C. Brief	☐ Mayor's Office	☐ I.A.D. Review	☐ Other (specify) _____
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REPORT OF INVESTIGATION OF CIVILIAN COMPLAINT

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ADDITIONAL REMARKS/COMMENTS (If Necessary)

C.C.R.B. No.

This investigation arose on a complaint filed by § 87(2)(b) who alleges that two individuals who said they were officers harassed, searched, assaulted and racially cursed him.

There are no injuries claimed in this incident.

The complainant has been uncooperative during the course of this investigation. § 87(2)(b) has failed to keep 2 appointments. He was contacted and stated that he would not be interviewed until he spoke with an attorney. § 87(2)(b) was to call I/O and has failed to contact I/O. § 87(2)(b) has not responded to contact letters sent. Certified receipt was signed by § 87(2)(b) and is included in this case.

There was no arrest made in this incident, no record of a UF250 being prepared. The alleged officers were in civilian clothes and in a privately owned vehicle. Investigation reveals that PO Bush and PO Digiacommo were working anti-crime on the day in question and were authorized to use the private auto. Officers were entered into the system.

SUMMARY OF FINDINGS AND RECOMMENDATIONS

ALLEGATION	CLASSIFICATION				FINDINGS AND RECOMMENDATIONS
	F	A	D	E	
A		x			Case Closed Uncooperative
B	x				Case Closed Uncooperative
C				x	Case Closed Uncooperative

TOTAL ENCLOSURES

17

INVESTIGATOR'S SIGNATURE

Sgt. Beeri

SUPERVISOR'S SIGNATURE

Lt Gigliobaino

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